of Oklahoma, if such license is required, which shall serve as a Federal permit for fishing in said waters. Said license must be carried on his person when the permittee exercises the privilege of fishing in said waters and must be exhibited upon request of any Federal or State officer authorized to enforce Federal or State fishing laws or regulations, or laws and regulations applicable to the refuge.

(d) *Routes of travel.* Persons entering the refuge for the purpose of fishing shall follow such routes of travel as may be designated from time to time by suitable posting by the officer in charge of the refuge.

(e) *Use of boats.* The use of boats or floating devices of any description is prohibited on all waters of the refuge except for official purposes by the Oklahoma State Game and Fish Commission and by representatives of the Fish and Wildlife Service authorized to enforce the laws and regulations applicable to fishing in Oklahoma.

(f) *Live bait.* No person shall use live bait while fishing in any of the waters of the refuge, and no one may have in his possession within the boundaries of the refuge any live minnows or any seine or net that may be used in capturing minnows.

(g) *Temporary restrictions.* During periods of waterfowl concentrations on the refuge, fishing will not be permitted in such areas of the refuge as, in the judgment of the officer in charge, should be closed to fishing in order to provide adequate protection for such waterfowl concentrations and are posted suitably by such officer.

(h) *Revocation of previous regulations.* The regulation, as amended, governing fishing on the Wichita Mountains Wildlife Refuge, Oklahoma, approved by the Acting Chief of the Bureau of Biological Survey on May 25, 1939 (4 F.R. 2198), is hereby revoked.

ALBERT M. DAY,
Acting Director.

MAY 1, 1943.

[F. R. Doc. 43-7213; Filed, May 7, 1943; 9:36 a. m.]

Notices

DEPARTMENT OF THE INTERIOR.

General Land Office.

[Public Land Order 114]

NEVADA

PARTIAL REVOCATION OF ORDER WITHDRAWING CERTAIN LANDS FOR USE OF WAR DEPARTMENT

Revoking in part Executive Order No. 8954 of November 27, 1941, withdrawing public lands for use of the War Department.

By virtue of the authority vested in the President and pursuant to Executive Order No. 9146 of April 24, 1942; *It is ordered,* As follows:

Executive Order No. 8954 of November 27, 1941, withdrawing certain public lands for the use of the War Department as machine gun ranges, is hereby revoked so far as it affects the public lands in the following-described areas:

MOUNT DIABLO MERIDIAN

T. 20 S., R. 62 E.,
Sec. 1, E½ sec. 11, secs. 12 to 14, inclusive, secs. 24, 25 and 36.
T. 20 S., R. 63 E.,
W½ sec. 2, secs. 3 to 5, inclusive,
S½S½ sec. 6, secs. 7 to 10, inclusive,
W½ sec. 11, W½ sec. 14, secs. 15 to 22, inclusive, W½ sec. 23, W½ sec. 26, secs. 27 to 34, inclusive, and W½ sec. 35, unsurveyed.

The areas described, including both public and non-public lands, aggregate 21,600 acres.

HAROLD L. ICKES,
Secretary of the Interior.

APRIL 22, 1943.

[F. R. Doc. 43-7209; Filed, May 7, 1943; 9:36 a. m.]

[Public Land Order 115]

WYOMING

REVOCATION OF ORDER WITHDRAWING CERTAIN LANDS FOR FEDERAL GAME REFUGE

Revoking Executive Order No. 4338 of November 10, 1925.

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U.S.C., title 43, sec. 141), and pursuant to Executive Order No. 9146 of April 24, 1942: *It is ordered,* As follows:

Executive Order No. 4338 of November 10, 1925, withdrawing certain public lands in Tps. 43 and 44 N., R. 75 W., Sixth Principal Meridian, Wyoming, pending determination as to their suitability for a Federal game refuge, is hereby revoked.

HAROLD L. ICKES,
Secretary of the Interior.

APRIL 26, 1943.

[F. R. Doc. 43-7210; Filed, May 7, 1943; 9:36 a. m.]

[Public Land Order 116]

CALIFORNIA

ORDER WITHDRAWING PUBLIC LAND FOR USE OF THE WAR DEPARTMENT FOR AIRPORT PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9146 of April 24, 1942, and to section 3 of the act of June 17, 1902, 32 Stat. 388 (U. S. C., title 43, sec. 416): *It is ordered,* As follows:

Subject to valid existing rights, the following-described public land is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the War Department for airport purposes:

SAN BERNARDINO MERIDIAN

T. 8 N., R. 23 E., sec. 19, N½NE¼.
The area described contains 80 acres.

The order of October 16, 1931, of the Secretary of the Interior, withdrawing certain lands for reclamation purposes, is hereby modified to the extent necessary to permit the use of the land as herein provided.

Upon expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647), this order shall become ineffective upon notice to the Secretary of War that the land is needed for reclamation purposes. Upon termination of the use of the land by the War Department, that Department will, at its expense, remove any buildings or structures placed by it upon the land.

HAROLD L. ICKES,
Secretary of the Interior.

APRIL 26, 1943.

[F. R. Doc. 43-7211; Filed, May 7, 1943; 9:36 a. m.]

[Public Land Order 117]

OREGON

REVOCATION OF ORDER WITHDRAWING LAND FOR RANGER STATION

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U.S.C., title 43, sec. 141), and pursuant to Executive Order No. 9146 of April 24, 1942: *It is ordered,* As follows:

Executive Order No. 5928 of September 29, 1932, withdrawing and reserving public land for use by the Forest Service as a ranger station in connection with the administration of the Deschutes National Forest, is hereby revoked.

HAROLD L. ICKES,
Secretary of the Interior.

APRIL 27, 1943.

[F. R. Doc. 43-7212; Filed, May 7, 1943; 9:36 a. m.]

Office of the Secretary.

SOLID FUELS ADMINISTRATOR FOR WAR AND DEPUTY SOLID FUELS ADMINISTRATOR FOR WAR

DELEGATION OF AUTHORITY

MAY 6, 1943.

Order No. 1807 (8 F.R. 5767), signed by me on May 1, 1943, is hereby amended to read as follows:

Pursuant to the provisions of Executive Order No. 9340 of May 1, 1943, 8 F.R. 5695, the Solid Fuels Administrator for War, and the Deputy Solid Fuels Administrator for War subject to such supervision and direction as the Administrator shall from time to time determine, are hereby authorized to exercise any and all power, authority and discretion conferred upon the Secretary of the Interior, with respect to all coal mines possession of which has been taken by him, to the same extent and with the same effect as the said power, authority and discretion may be exercised directly by the Secretary of the Interior.

HAROLD L. ICKES,
Secretary of the Interior.

[F. R. Doc. 43-7190; Filed, May 6, 1943; 2:40 p. m.]

CIVIL AERONAUTICS BOARD.

[Docket No. 695]

WESTERN AIR LINES, INC.

AMENDMENT TO NOTICE OF HEARING

In the matter of the petition of Western Air Lines, Inc., for an order fixing the fair and reasonable rate of compensation for the transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith, over routes Nos. 13, 19, and 52.

Notice is hereby given that hearing in the above-entitled proceeding to be held May 18, 1943, 10 a. m. (eastern war time) will convene in the Foyer of the Commerce Building Auditorium, 14th Street and Constitution Ave., NW., Washington, D. C.

Dated Washington, D. C., May 7, 1943.

By the Civil Aeronautics Board.

[SEAL] FRED A. TOOMBS,
Acting Secretary.

[F. R. Doc. 43-7216; Filed, May 7, 1943; 11:43 a. m.]

FEDERAL TRADE COMMISSION.

[Docket No. 4957]

ATLANTIC CITY WHOLESALE DRUG CO., ET AL

COMPLAINT AND NOTICE OF HEARING

In the matter of Atlantic City Wholesale Drug Company, a corporation; Roy H. Cochran, individually and as President of Atlantic City Wholesale Drug Company; Rodney S. Pullen, Jr., individually and as Sales and Advertising Manager of Atlantic City Wholesale Drug Company.

Complaint

The Federal Trade Commission having reason to believe that the parties respondent named in the caption hereof and hereinafter more particularly designated and described, since June 19, 1936, have violated and are now violating the provisions of section 2 of the Clayton Act, as amended by the Robinson-Patman Act approved June 19, 1936 (U. S. C. Title 15, sec. 13), hereby issues its complaint, stating its charges with respect thereto as follows:

PARAGRAPH 1. The respondent Atlantic City Wholesale Drug Company is a corporation organized and existing under the laws of the State of New Jersey, having its office and principal place of business in the Boardwalk National Arcade Building, Atlantic City, New Jersey.

The individual respondent Roy H. Cochran is president of the respondent corporation, and is now, and for the last several years has been, in active and direct charge of the management and operation of said respondent corporation.

The individual respondent Rodney S. Pullen, Jr., is now, and was during several periods of time since June 19, 1936, actively engaged with Roy H. Cochran in the operation of the respondent corporation, and for a period of such time was Sales and Advertising Manager of the respondent corporation.

PAR. 2. The respondent corporation, with the active cooperation, aid and assistance of the individual respondents, is now and has been since June 19, 1936, engaged in the wholesale drug business and has bought, sold and distributed in interstate commerce, drugs, cosmetics and other merchandise for its own account, and during this period of time, in the course and conduct of said business, has been in substantial competition with other corporations, individuals, partnerships and firms similarly engaged in the business of buying, selling and distributing drugs, cosmetics and other merchandise in interstate commerce.

PAR. 3. Each of the respondents and the competitors of respondents buy said drugs, cosmetics and other merchandise from a large number of manufacturers, jobbers, importers and distributors (hereinafter called sellers), located in the various states of the United States. Each of said sellers sells and distributes drugs, cosmetics, or other merchandise in commerce between and among the various states of the United States and the District of Columbia and cause said drugs, cosmetics and other merchandise to be shipped and transported from their respective places of business in the various states of the United States to the respondent corporation at its principal place of business in Atlantic City, New Jersey, and to competitors of said respondent and to competitors' customers located in various states of the United States and the District of Columbia. The respondents and the respondents' competitors resell and distribute said drugs, cosmetics and other merchandise in commerce between and among the various states of the United States and the District of Columbia.

PAR. 4. The respondent corporation, since June 19, 1936, with the active cooperation, aid and assistance of the individual respondents, has adopted, followed and pursued purchasing policies and practices which were knowingly designed and intended to induce, and did induce, discriminatory prices favorable to the respondent corporation in its purchases of said drugs, cosmetics and other merchandise.

The parties respondent, pursuant to and in furtherance of said purchasing policy and practices, have caused a magazine to be published, first under the trade name of Shore Topics, the name of which was thereafter changed to the Boardwalker (both of the magazines are hereinafter referred to as the magazine). The magazine has been issued under one name or the other at irregular intervals, but usually twelve issues are published each year. The publication of the aforesaid magazines is not an independent business operated in good faith on a profit basis, but is a subterfuge, knowingly designed and operated solely as an incident to the wholesale drug business and operated by the respondents primarily as an instrument for obtaining discriminations in prices on drugs, cosmetics and other merchandise.

Since June 19, 1936, numerous sellers have been induced, and are being induced, to enter into contracts or agreements authorizing advertisements to be inserted in the magazine, which contracts or agreements either provide, or it is so understood and so carried out, that the charges made for said advertisements shall be credited on the purchase price of the drugs, cosmetics and other merchandise purchased by the respondent corporation from such sellers. The respondents refuse to purchase said drugs, cosmetics or other merchandise from said sellers unless such sellers purchase advertising in its magazine and all, or a very large percentage, of the drug, cosmetics and other merchandise purchased by respondents is purchased only from sellers who advertise in respondents' magazine. The respondent corporation, with the cooperation, aid and assistance of the individual respondents, receives information as to the prices paid by its competitors to said sellers for said drugs, cosmetics or other merchandise and knowingly induces said sellers to grant it substantially lower and discriminatory prices by refusing to purchase said drugs, cosmetics or other merchandise from said sellers unless said sellers pay to respondent corporation a substantial portion of the regular purchase prices of said merchandise for advertising in respondents' magazine.

The discriminations in price which favor the respondents are not uniform on all drugs, cosmetics or other merchandise purchased, or from each seller, varying either with drugs, cosmetics and other merchandise, or with the sellers. As a result, the respondents pay said sellers from approximately twenty percent to approximately forty percent less than respondents' competitors pay said sellers for drugs, cosmetics and other merchandise of like grade and quality. The magazine had no real value as an advertising medium and there were no substantial benefits and considerations accruing to sellers who enter into contracts for such advertising with the respondents and who agree to pay and do pay respondents, directly or indirectly, for such advertising or by granting and allowing credits, discounts and allowances to the respondents on respondents' purchases of drugs, cosmetics and other merchandise.

PAR. 5. The effect of said discriminations in price, as set forth above, may be substantially to lessen competition, in the line of commerce in which the respondents and their competitors are engaged, and to injure, destroy, or prevent competition with respondents, in the resale of said drugs, cosmetics and other merchandise of like grade and quality purchased from said sellers.

PAR. 6. The foregoing alleged acts of each of said respondents are a violation of section 2 (f) of the said Act of Congress approved June 19, 1936, entitled "An Act to amend section 2 of the Act entitled 'An Act to supplement existing laws against unlawful restraints and monopolies, and for other purposes,' approved October 18, 1914, as amended (U.S.C. Title 15, sec. 13) and for other purposes."

Wherefore, the premises considered, the Federal Trade Commission on this 3rd day of May, A. D. 1943, issues its complaint against said respondents.